

Tentative Rulings for Department 32

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Tentative Ruling

Re: ***Communities for a Better Environment, et al. v. Cliff, et al.***
Superior Court Case No. 24CECG05430 (Lead Case)
Case No. 24CECG05508
Case No. 24CECG05514
Case No. 24CECG03544

Hearing Date: August 14, 2026 (Dept. 32)

Motion: By Petitioners to Augment the Administrative Record

Tentative Ruling:

To grant as to all. (Cal. Code Regs. Tit. 17, § 600005, subd. (b); Pub. Resources Code, § 21167.6, subd. (e); Gov. Code, § 11347.3, subd. (b).)

Explanation:

The California Air Resources Board ("CARB") formally initiated consideration of amendments to the Low Carbon Fuel Standard ("LCFS") on December 19, 2023 when it posted a Notice of Public Hearing to Consider Proposed Low Carbon Fuel Standard Amendments. An initial public hearing was set for March 21, 2024. A public comment period occurred between January 5, 2024 and February 20, 2024. Following this, CARB posted an initial package of proposed modifications to the LCFS Amendments and provided a public comment period from August 12, 2024 to August 27, 2024. A second package of proposed modifications was posted with a public comment period from October 1, 2024 to October 16, 2024. On November 8, 2024, a public hearing was held on adoption of the LCFS Amendments. On November 8, 2024, CARB's Board of Directors adopted Resolution Number 24-14 approving the LCFS Amendments.

Moving Petitioners, Defensores Del Valle Central Para El Aire Y Agua Limpio, Food & Water Watch, and Animal Legal Defense Fund, filed a petition for writ of mandate on December 18, 2024 challenging CARB's decision to adopt amendments to the LCFS. They assert the amendments harmfully incentivize factory farm expansion, detrimentally impacting the San Joaquin Valley. Petitioners allege that these amendments are in violation of the California Environmental Quality Act ("CEQA"). On July 25, 2025, the moving petitioners filed a separate petition for writ of mandate asserting failure to comply with the Global Warming Solutions Act and violations of the Administrative Procedure Act ("APA"). There, moving petitioners similarly assert that the LCFS amendments harmfully increased incentives for factory farms to produce biogas in order to generate LCFS credits.

On July 17, 2025, the court consolidated Fresno Superior Court Case Numbers 24CECG05430, 24CECG05508, and 24CECG05514, all of which challenge the LCFS Amendments. The three cases are to share one administrative record. (Order Partially Consolidating Cases, July 17, 2025.) On June 22, 2026, the court consolidated Fresno Superior Court Case Number 25CECG03544 with the three other matters. (Order to

Consolidate, June 22, 2026.) As a result, there is a mixture of CEQA and APA claims before the court.

Petitioners seek to augment the record to include two categories of materials: (1) materials generated in relation to a Dairy Sector Workshop on August 22, 2024 and (2) materials generated in relation to meeting of CARB's Environmental Justice Advisory Committee ("EJAC") on August 25, 2023, October 13, 2023, and March 15, 2024.

In cases arising under CEQA, the record shall include, but is not limited to, project application materials, staff reports and related documents, transcripts of the proceedings, notices, written comments, written evidence or correspondence, proposed decisions or findings, documentation of the final decision, other relevant written materials, and the full written record before any inferior administrative decisionmaking body whose decision has been appealed. (Pub. Resources Code, § 21167.6, subd. (e).)

For the APA, public agencies are required to maintain a rulemaking file. (Gov. Code, § 11347.3; *POET, LLC v. State Air Resources Bd.* (2013) 218 Cal.App.4th 681, 741.) The rulemaking file shall include copies of petitions received, all published notices, determinations, estimates, data and other factual information, studies, reports, written comments submitted to the agency and considered by the agency, transcripts, recordings, or minutes of hearings, the date on which the full text was available, text of regulations as proposed and modified, any other information, statement, report, or data the agency is required to consider, and an index of each item contained in the rulemaking file. (Gov. Code, § 11347.3, subd. (b).)

CARB is obligated to "prepare and keep an administrative record of the proceedings during which an environmental analysis is prepared." (Cal. Code Regs. Tit. 17, § 60005.) Further, "[f]or a rulemaking item, the rulemaking records as specified in section 11347.3 of the California Government Code will generally also constitute the CEQA administrative record for that item under section 21167.6 of the California Public Resources Code." (*Id.* at subd. (b).) Notably, here, the court will ultimately be considering both CEQA and the APA. As such, the record will need to address both.

Trial courts have "authority to resolve disputes between the parties over what should be included in, or excluded from, the record of proceedings." (*Consolidated Irrigation Dist. v. Superior Court* (2012) 205 Cal.App.4th 697, 712.) Where an agency prepares the administrative record, the agency "exercises no discretion and employs no specialized expertise; it performs a ministerial task" applying Public Resources Code section 21167.6. (*Madera Oversight Coalition, Inc. v. County of Madera* (2011) 199 Cal.App.4th 48, 64, disapproved on other grounds by *Neighbors for Smart Rail v. Exposition Metro Line Construction Authority* (2013) 57 Cal.4th 439.) When courts are tasked with resolving "statutory ambiguity related to the public's access to information, the California Constitution requires the court to construe the ambiguity to promote the disclosure of information to the public." (*POET, LLC v. State Air Resources Bd.*, *supra*, 218 Cal.App.4th at p. 750.) It is said, that Public Resources Code section 21167.6 "'contemplates that the administrative record will include pretty much everything that ever came near a proposed development or to the agency's compliance with CEQA in responding to that development.'" (*San Francisco Tomorrow v. City and County of San*

Francisco (2014) 229 Cal.App.4th 498, 531-534, quoting *County of Orange v. Superior Court* (2003) 113 Cal.App.4th 1, 8.)

Dairy Sector Workshop Materials

Petitioners seek to augment the record to include certain materials relating to a Dairy Sector Workshop held August 22, 2024. CARB argues that these materials were not submitted to CARB in connection with the amendment of the LCFS Regulations. CARB asserts that Workshop was to address concerns about the impacts of dairies and dairy digesters on adjacent communities and that the only mention of the LCFS Amendments was briefly during public comment. (Monroe Decl., ¶ 4.)

Government Code section 11347.3, subdivision (b)(6) requires the rulemaking file to include “[a]ll data and other factual information, any studies or reports, and written comments submitted to the agency in connection with the adoption, amendment, or repeal of the regulation.” There is no real dispute that these materials contain some information which addressed LCFS Amendments. There is no real dispute that the LCFS Amendments were not on the agenda for the Workshop, however, the LCFS Amendments were brought up at the Workshop. Further, CARB acknowledges that the Recirculated Draft Environmental Impact Analysis for the LCFS Amendments references CARB’s staff presentation from the Workshop. Broadly construing “in connection with” results in finding that these materials should be part of the administrative record. As such, the disputed materials from the Dairy Sector Workshop held August 22, 2024 should be included in the record.

EJAC Meetings

Petitioners seek to augment the record to include certain materials relating to EJAC meetings on August 25, 2023, October 13, 2023, and March 15, 2024. CARB argues that these materials were not submitted to CARB in connection with amendment to the LCFS Regulations. CARB asserts that the process, here, the meetings, that the EJAC used to develop its recommendations is not part of CARB’s rulemaking and therefore should not be part of the record. CARB does not dispute that the materials relating to the three EJAC meetings relate to the LCFS Amendments. CARB does not dispute that its staff members hosted these meetings or that its staff received materials at these meetings.

In *POET, LLC v. State Air Resources Bd.*, *supra*, 218 Cal.App.4th at pp. 751-754, the appellate court found that emails from consultants contained factual information submitted to the agency. Omission of these emails from the rulemaking file constituted a violation of the APA. (*Id.* at p. 754.) In *Consolidated Irrigation Dist. v. Superior Court*, *supra*, 205 Cal.App.4th at p. 724, documents which were “readily available” to city personnel were part of the record of proceedings under CEQA. Consistent with *POET* and *Consolidated Irrigation*, this court finds that the materials generated in relation to the EJAC meetings, in which CARB staff participated, contain factual information submitted to CARB. CARB has not cited to sufficient legal authority for the position that the EJAC process is not to be part of the record.

CARB further argues that the materials submitted to CARB prior to the December 2023 Rulemaking Notice are not part of the record pursuant to Government Code

section 11347.3, subdivision (b)(6). Government Code section 11347.3, subdivision (b)(6) does not provide such a limit. CARB has not cited to sufficient legal authority for this position. Again, interpreting the provision broadly requires inclusion of these materials.

The court grants petitioners' motion to augment in its entirety.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: GDW on 8/13/26.
(Judge's initials) (Date)